

Chapter #9: Health & Safety at WORK:-

9.1: The Problem:

⇒ Health and Safety at work only hits when there's a major accident or disaster.

⇒ However, since the beginning of 1970s, the number of fatal accidents at work has fallen sharply.

⇒ Despite this improvement, many employees and even some members of the public still lose their lives every year due to accidents at work.

Background:

- Being safe at work is important. it is responsibility shared by both the employer and employee.

• For employers, one of the fundamental principles of work place health and Safety is risk assessment which identifies the hazards and potential for harm whilst working.

Creating a piece of health and Safety legislation that would be:

⇒ Easy to follow

⇒ Flexible enough to be applied regardless of an organization's size or risk.

Health and Safety legislation to cover:

- Employment generally
- Members of the public affected by work activities.

Safety at work Act regulates work place health, Safety and welfare. it aims to protect people from the risk of injury or ill health by:

- Ensuring employee's health, safety and welfare at work;

- Protecting non-employees against the health and safety risks arising from work activities.
- Controlling the keeping and use of explosive or highly flammable or dangerous substances.

◦ The Health and Safety at Work Act applies to everyone "at work". It sets out the general duties of:

- ⇒ Employers
- ⇒ Employees
- ⇒ Self-employed people
- ⇒ Those in control of non-domestic premises

◦ Manufacturers and suppliers of articles and substances.

Reports of the Robins Committee 1972

Before the report:

The focus was mainly on creating laws and regulations to protect workers. These laws covered things like machinery safety and controlling harmful chemicals. However, this approach suggested that this approach was not enough.

This report pointed out that:-

⇒ A major cause of accidents was a lack of care or attention by the workers themselves. The report argued that simply having more rules and inspectors would not solve this problem.

⇒ Instead, it emphasized the importance of changing people's attitudes towards safety. It suggested that workers should be encouraged to take responsibility for their own safety and the safety of those around them.

→ The Robens Report shifted the focus from just relying on laws and regulations to also promoting a safety culture where everyone plays a role in creating a safe working environment.

Recommendations of the Robens Committee

⇒ The Committee found that the old system was too complex and did not effectively protect workers. They proposed a new approach that focused on:

1. Involving workers in safety:

○ The Committee believed that workers should be more involved in safety and health matters at their workplace.

○ Employers should consult with their employees on safety issues and workers should have a say in how safety is managed.

2. Creating a single national authority:

○ A national authority for health and safety should be established.

3. Simplifying regulations

○ The Committee proposed replacing the existing complex system of regulations with a simpler, more flexible framework.

4. Promoting voluntary codes of practice:

○ The Committee suggested that voluntary codes of practice should be developed to provide guidance to businesses on how to improve safety and health.

5. Expanding the scope of laws

○ The Committee recommended extending the scope of the law to cover more workers, including the self-employed.

6. New administrative sanctions should be adopted.

(Constraints)
(Unlikely, Boycotts)

7. Local authority work should be co-ordinated with that of the new authority.

8. The interests of the public should be taken into account in the new legislation.

9. Criminal fire precautions should be dealt with under a fire precaution Act.

10. The employment Medical Advisory Service should function as part of the new authority.

Overall Philosophy:

The Robens Committee's report aimed to shift the focus from solely relying on laws and regulations to promoting a safety culture where everyone plays a role in creating a safe working environment. It emphasized the importance of shared responsibility between employers and employees for workplace safety.

Impact:

⇒ The Robens Committee's recommendations had a significant impact on UK health & safety laws. They led to the creation of the Health and Safety at Work Act 1974, which is still the cornerstone of UK health and safety legislation today. The Act implemented many of the recommendations of the Robens Committee, including the establishment of the Health and Safety Executive as the national authority for health & safety.

Health and Safety Act 1974

⇒ The Health and safety at work Act 1974 is widely regarded as the cornerstone of health and safety legislation.

The main objectives of Health and safety at work Act

⇒ The main objectives of the HASAWA are to:

- Ensure the health, safety and welfare of employees at work by imposing duties on employers.
- Protect non-employees, such as visitors, contractors and members of the public, from work related risks.
- Regulate the use of dangerous substances and machinery to minimize risks.
- Encourage consultation and cooperation between employers and employees on health and safety matters.
- Establish a regulatory body to enforce health and safety standards.

⇒ The overarching goal of the Act is to foster a proactive, prevention approach to workplace safety.

General Duties

Employers:

Employers have a general duty to ensure the health, safety, and welfare of their employees and others who may be affected by their work activities. This includes assessing risks, implementing preventive measures, and providing training.

Employees:

Employees have a duty to take reasonable care of their own health and safety and that of others who may be affected by their work activities.

Specific Responsibilities

Risk Assessment:

- Employers must carry out regular risk assessments to identify potential hazards

and implement control measures to minimize risks.

Safe working Environment:

Employers must provide a safe working environment, including safe systems of work, adequate facilities, and appropriate equipment.

Health and Safety Training:

Employers must provide adequate health and safety training to their employees to ensure they are aware of the risks and know how to work safely.

Consultation with Employees:

Employers must consult with employees on health and safety matters, particularly through health and safety committees or representatives.

Duties of Manufacturers

Designers and Suppliers

⇒ Before this Act, there were not many specific rules for designers, manufacturers, and suppliers to ensure that their products were safe.

⇒ The 1974 Act introduces new duties for them.

- They now have a responsibility to make sure their products are safe when used as intended.

- This includes considering how the product will be used and taking steps to prevent accidents.

- It shifts some of the responsibility for safety from the user to the manufacturer or supplier.

Ex:

Donoghue v Stevenson case. In this case, a woman drank ginger beer that contained a decomposed snail. She became ill and sued the manufacturer. The court ruled in her favour, establishing the principle that manufacturers have a duty of care to consumers.

Safety Policy

⇒ In HASAWA 1974 highlights the requirements for employers to create and maintain a safety policy for a company having more than five employees.

legal requirements: HASAWA makes it mandatory for companies to have a written safety policy.

Benefits of Safety Policy:

Clear Objectives:

it helps define the company's safety goals and objectives.

it clarifies who is responsible for different safety aspects.

Performance management:

it provides a standard to measure the company's safety performance.

Identifies weaknesses:

it helps highlight areas where the company needs to improve safety practices.

Content of a Safety Policy:

⇒ A safety policy should include information on:

- Safety procedures and practices.

- Training & Supervision

- Responsibilities of employees and management.
- Emergency procedures
- Accident reporting and investigation

Consultation

⇒ Employees has a legal obligation to consult with employees, especially when there is a recognized trade union.

Recognized trade unions:
if a trade union is present, the employees must consult with the union representatives.

Non-Unionized Workplaces:

Even in workplaces without unions, employers should still consult with employees through other means.

Enforcement Powers

⇒ The Health and Safety Act at work Act promotes consultation and self-regulation, it also grants inspectors significant enforcement powers.

⇒ These powers are necessary to ensure compliance with health and safety regulations.

⇒ Inspectors are people who check to see if workplaces are safe. These inspectors can:

- Visit workplaces at any time, even without warning.
- Ask questions to workers and bosses.

◦ Tell bosses to fix things that are dangerous.

◦ Look around the workplace and take pictures.

The Health and Safety Commission

⇒ The HSC is a UK government agency responsible for overseeing workplace health and safety. It was created in 1974 and operated until 2008.

Key responsibilities of the HSC included:

- Setting standards for workplaces.
- Providing guidance how to comply with health and safety regulations.

- Promoting awareness about health and safety issues through campaigns and educational materials.
- Investigating workplace accidents and incidents to identify cause and prevent future occurrences.
- Enforcing regulations

Note:

In 2008, The HSC was replaced by Health and Safety Executive (HSE), which continues to carry out similar functions.

The Health and Safety Executive

⇒ This consists of three members appointed by the HSC, and is charged with implementing the powers of the Commission. It has special responsibility.

⇒ A large number of HSE's staff consists of the inspectors

Reasonably Practices

⇒ Means taking all steps that are reasonably possible to ensure health and safety. It is not about doing everything that could possibly be done, but doing what is sensible and achievable in the given circumstances.

Content:

They can vary depending on the factors like the type of workplace, the nature of the work, and the resources available.

Example: A company has a machine that could potentially cause injuries.

⇒ The company would need to consider

- Severity of the risk: How serious could the injury be?

- Likelihood of the risk: How likely is it that someone will be injured?

- Cost & Difficulty of control measures: How much it cost to implement safety measures and how difficult would they be to put in place.

Based on these factors, the company would need to decide what steps are "reasonably practicable" to reduce the risk. This might involve things like:

- Guarding the machine: putting a barrier around the machine to prevent people from getting too close.
- Training employees
- Regular maintenance.

Comparison of Pre-1974 & Post-1974 Health and Safety Legislation:

Feature	Pre-1974	Post-1974
Scope of Application	Focused on specific premises like factories and offices.	Applies to all workplaces, regardless of size or industry. Employment is the only criterion.
Specific Requirements	Specific requirements e.g. Factories Act	General requirements e.g. HASWA

employed Duties	Limited to specific duties, such as fencing dangerous machinery.	Broadly duty to ensure the health and safety, welfare of all employees, as far as is reasonably practicable.
manufacturer & supplier Liability	Limited liability for manufacturer & suppliers.	Comprehensive duties for manufacturer & suppliers to ensure their products are safe for use at work.

9.5) Human Factors

- Human behaviour and attitudes are important in health and safety management.
- People who design, implement and use systems can all influence system safety outcomes.
- It is challenging to achieve absolute safety due to the complexity of human behaviour.

9.6 Financial Consideration

Safety as a business objective:

⇒ Safety should be treated as an important business objective, just like profit and productivity.

Balancing safety and costs:

⇒ Safety measures can be costly, especially during economic downturns.

⇒ Neglecting safety can lead to even greater costs in the long run.

Early consideration of safety:

⇒ Considering safety from the beginning or initial design stage can avoid additional expenses later on.

Hidden costs of Accidents:

⇒ Accidents not only disrupt production but also incur costs like compensation, insurance premiums and loss of reputation.

9.7) Corporate Liability & manslaughter:

Corporate liability: Refers to the responsibility of an organization for the actions or omissions of its employees, agents or representatives. It means that a company can be held legally accountable for workplace accidents.

Corporate manslaughter:

⇒ is a specific criminal offense that can be applied to organizations where serious management failures have resulted in the death of an employee or member of the public.

⇒ The corporate manslaughter and Corporate Homicide Act 2007 in the UK was introduced to address this issue and ensures that companies are held accountable for such failures.